

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$11,654.51, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$873.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$12,528.12.

Plaintiff to file order on Motion, as well as submit Judgment.

9. 9:00 AM CASE NUMBER: L25-05601

CASE NAME: AQUA FINANCE, INC. VS. SUSAN HYDE

***HEARING ON MOTION IN RE: MOTION FOR LEAVE TO FILE FIRST AMENDED ANSWER FILED BY DEF**

ON 1/8/26

FILED BY: HYDE, SUSAN

TENTATIVE RULING:

Background

Defendant filed a Motion to Amend their Answer.

The Motion was timely served, and is unopposed.

Analysis

A trial court can permit the amendment of any pleading at any time. *CCP Section 473(a)*. In fact, courts should be quite liberal in permitting such amendments unless the statute of limitations has not expired, and the opposing party will not suffer prejudice. *Harris v. City of Santa Monica* (2013) 56 Cal4th 203, 240.

The factors for a court to consider include the moving party's conduct and the timeliness of the amendment *Duchrow v. Forrest* (2013) 215 CA4th 1359, 1377. An amendment that contradicts an admission in the original pleading should not ordinarily be allowed, unless the moving party shows that the admission was the result of mistake or negligence. *Astenius v. State* (2005) 126 CA4th 472, 476-477.

In the instant matter, there is nothing about Defendant's conduct, or the timeliness of the Motion, that would suggest to this court that leave should be denied. As stated in her declaration for this Motion, the defendant is elderly, self represented, and visually impaired. She filed this Motion soon after consulting with an attorney at a legal aid service, and less than eight months after the filing of the Complaint.

Moreover, there is nothing in the proposed Answer, which was included in Defendant's Motion, that is inconsistent with Defendant's initial Answer.

Finally, no trial date has been set.

Disposition

Defendant's Motion is granted.

Defendant to file Amended Answer within 10 days of this Order.

Defendant to file Order.